

In T.736/14 the board held that, if an applicant whose application is non-unitary responds unclearly and/or in a misleading way to an invitation from the examining division to designate which searched invention it wishes to prosecute further, it could not be automatically assumed that the applicant selected the invention covered by the main request for examination. Rather, the examining division had to clarify, e.g. via a further communication, which of the searched inventions the applicant actually wanted it to examine. Confronting the applicant with an irrevocable decision not to admit an auxiliary request covering one of the inventions searched, without giving an opportunity to comment on its admissibility beforehand, constituted a substantial procedural violation of the applicant's right to be heard. In T.291/93 it was held that a simple reference by the appellant to an inadequate search of the prior art could not be taken as sufficiently supporting an allegation that a substantial procedural violation had occurred.

11.6.5 Guidelines

In T.42/84 (OJ 1988, 251) the board held that the Guidelines were not legally binding and a failure by the examining division to follow them was not in itself a procedural violation within the meaning of R.67 EPC 1973 unless it also constituted a violation of a rule or principle of procedure governed by an Article of the Convention or one of the Implementing Regulations (see also T.647/93, OJ 1995, 132; T.51/94; J.24/96 OJ 2001, 434; T.937/97).

11.6.6 Request for interview

In T.182/90 (OJ 1994, 641), T.119/91, T.523/91, T.366/92, T.397/94 and T.245/15 the boards of appeal stated that it was not a substantial procedural violation within the meaning of R.67 EPC 1973 if a request to be called back by or have an interview with the primary examiner was ignored. It was for the examiner's discretion whether to conduct such informal discussions in accordance with the Guidelines, bearing in mind the particular circumstances of the case (see also T.300/89, OJ 1991, 480).

11.6.7 Oral proceedings

a) Failure to summon for oral proceedings

The refusal of a request for oral proceedings usually amounts to a breach of the right to be heard, and as such, a violation justifying the reimbursement of the appeal fee (see inter alia T.209/88, T.283/88, T.598/88, T.668/89, T.663/90, T.766/90, T.795/91, T.35/92, T.686/92, T.556/95, T.647/99, T.1972/13).

In T.405/96 the board held that receipt of the request for oral proceedings by the EPO was proven by the appellants. The fact that the department of first instance could not be held responsible for the loss within the Office was irrelevant (see also T.671/95).

Failure to summon the parties to oral proceedings was considered to be a substantial procedural violation in T.209/88 and T.93/88 (see also J.16/02). In T.560/88 the board of appeal held that there was a substantial procedural violation where a clear auxiliary

request by the appellant for oral proceedings had not been granted (see also T 543/92, T 460/16).

In T 19/87 (OJ 1988, 268), however, the board held that the finding – albeit wrong – that there had been no request for oral proceedings was not a procedural violation within the meaning of R 67 EPC 1973. Furthermore, failure to seek clarification from the appellant did not constitute a breach of any procedure.

In T 731/93 the board held that the refusal of a request for "further" oral proceedings constituted a substantial procedural violation where fresh evidence had been admitted. Whilst Art. 116(1), second sentence, EPC 1973 does give the EPO the discretionary power to reject a request for further oral proceedings before the same department, it does so only "where the parties and the subject of the proceedings are the same".

b) Submissions of parties as response to summons

In T 1183/02 (OJ 2003, 404) the board held that a response to a summons to oral proceedings before the examining division which contained good faith responsive amendments and arguments did not stay the summons. Hence omitting to confirm that the summons remained valid did not constitute a substantial procedural violation within the meaning of R 67 EPC 1973.

In T 343/08 the board stated that there was no general duty for an examining division to provide feedback on an applicant's reply to a summons to oral proceedings, in advance of such oral proceedings.

c) No reasons for refusal of request for postponement

In T 1505/06 the board held that the failure of the opposition division to include in its decision its reasons for refusing the request for postponement was a substantial procedural violation.

In ex parte case T 1750/14, the appellant's representatives requested a postponement of the final date for making submissions (under R 116(1) EPC) repeatedly and separately from their request to postpone the date for oral proceedings. The request for postponement of the final date was never withdrawn and the appellant's desire to file amended claims was made clear even during oral proceedings before the examining division. Because of the lack of substantiation within the meaning of R 111(2) EPC as to the refusal of the request for postponement of the final date for making submissions, the board held that the examining division had committed a substantial procedural violation. Nevertheless, the board considered that a party could not gain a procedural advantage from an omission of its own. Its procedural behaviour spoke against regarding the reimbursement of the appeal fee as equitable within the meaning of R 103(1)(a) EPC.

d) No reasons for refusal of request to change location for oral proceedings

In T 689/05 and T 933/10 the boards held that the examining division's rejection of the applicant's request that the oral proceedings be held in Munich instead of The Hague had to be reasoned, R. 111(2) EPC, R. 68(2) EPC 1973. In T 933/10 it was held that this violation justified the reimbursement of the appeal fee. However, in T 689/05 the board held that the established procedural violation did not affect the entire proceedings before the examining division. It would have been disproportionate to set aside the entire impugned decision because of the partial lack of reasoning of the decision under appeal. In T 1142/12 the board rejected the appellant's argument that under Art. 116 EPC the parties have not only a right to oral proceedings but also the right to have their case heard at the proper place (here, Munich instead of The Hague). Therefore, no substantial procedural violation occurred.

e) Repeated postponements of oral proceedings

In T 679/14 the board held that it was contrary to the principles of procedural efficiency and legal certainty to repeatedly adjourn oral proceedings. Referring to the Guidelines E-II, 7.1 – June 2012 version, the board concluded that the postponement of oral proceedings on five occasions at the instigation of the examining division without serious reasons, as far as apparent from the file, constituted a procedural deficiency in the circumstances of the case in hand. The board nevertheless refrained from deciding on whether it amounted to a substantial procedural violation. The appeal fee was however reimbursed due to violation of R. 111(2) EPC (insufficient reasons).

f) Minutes

In T 642/97 the board held that if a party was of the opinion that the minutes were incomplete or wrong since essential submissions were not reflected in the file it could request the opposition division to correct the minutes to preserve its rights. In the absence of such a request, the allegation of a substantial procedural violation could not be justified (see also T 231/99, T 99/08). In T 1277/15 the opposition division had not commented on the appellant's request for correction of minutes either in the contested decision on the merits or in any other, separate decision. The board, however, found that this procedural error had not had any impact on the outcome of the opposition proceedings.

In T 835/10 (referring to T 437/98) the appellant alleged that new arguments had been given in the decision of the examining division. The board did not agree and stated that the minutes gave a summary of what was discussed and did not have to expand the different steps of the reasoning given in writing later.

In T 685/14 the board took the view that the failure to transmit the minutes to the appellant was a procedural deficiency but, per se, not a fundamental one. A party should be in a position to file an appeal based on its own notes. Moreover, even after having received the minutes, the appellant had neither challenged their consistency with the decision, nor extended its case by any additional considerations. The board dismissed the appeal and refused the request for reimbursement of the appeal fee.

In T 853/10 the board held that, when judging whether a substantial procedural violation had occurred during the oral proceedings, the board could rely only on the minutes of the oral proceedings, which were not disputed by the patent proprietor (see also T 642/97), and on the facts agreed upon by all parties.

11.6.8 Right to be heard

The right to be heard (see chapter III.B.) is an important procedural right intended to ensure that no party is caught unawares by reasons given in a decision turning down his request on which he has not had the opportunity to comment (R 2/14 of 22 April 2016). A decision which fails to take into account the arguments submitted by a party and which is based on a ground on which the party had had no opportunity to present its comments, contravenes Art. 113(1) EPC and constitutes a substantial procedural violation, see among many other cases J 7/82, OJ 1982, 391; T 197/88, OJ 1989, 412; T 880/91; T 892/92, OJ 1994, 664; T 951/92, OJ 1996, 53; T 1101/92; T 220/93; T 479/94; T 778/98; T 594/00; T 1039/00; T 2294/12 (comparative tests), T 203/15 and T 2492/18.

Other violations of Art. 113(1) EPC may also constitute a substantial procedural violation, see the various cases listed in chapter III.B.2. For a case in which the board found a violation of the right to be heard but held that a reimbursement was not equitable, see T 433/08 (see in this chapter V.A.11.7.1).

The infringement of Art. 113(2) EPC has, in principle, also to be considered to be a substantial procedural violation justifying the reimbursement of the appeal fee (see T 647/93, OJ 1995, 132; see also T 32/82 and J 19/84), for example when the final requests were not clarified (T 666/90, T 552/97, T 1439/05, T 382/10) or when the opposition division overlooked amended claims presented in a submission T 543/92 and T 89/94). See chapter III.B.3. "Text submitted or agreed by applicant (patent proprietor) – Article 113(2) EPC".

11.6.9 Inadequate reasons given in the decision at first instance

The obligation to provide adequate reasoning in a decision in accordance with R. 111(2) EPC (R. 68(2) EPC 1973) is closely linked to the principle of the right to be heard under Art. 113 EPC (T 1340/10). A failure to do so is to be considered a substantial procedural violation justifying the reimbursement of the fee for appeal (see among many other cases T 493/88, OJ 1991, 380; T 522/90; T 392/91; T 142/95; T 278/00; T 571/03; T 897/03; T 1366/05; T 1612/07; T 87/08; T 353/11; T 2366/11; T 129/14 and T 679/14).

In T 75/91 the board stated that the impugned decision enabled the reader to follow a line of argument for refusing the application. Whether these reasons were convincing and had to be accepted by the board had nothing to do with a procedural violation. See also T 698/10, where the board added that the examining division was under no obligation to explicitly address every argument presented by the applicant as long as the reasoning given enabled the appellant and the board to examine whether the decision was justified or not. See also chapter III.B.2.4. "Consideration of the parties' arguments, submissions and evidence".

In T.2340/13 there was a discrepancy between what was stated in the "Summary of facts and submissions" of the written decision of the opposition division, where it was stated that, inter alia, Art. 123(3) EPC was discussed in detail, and the minutes, which although very detailed, did not mention any discussion concerned with Art. 123(3) EPC. Neither was there any discussion of this matter in the "Grounds for the decision", except that the title above point 3 read "Added subject-matter (Art. 100(c), 123(2), 123(3) EPC)". The board found that if the matter had been discussed, the opposition division should properly have given an indication thereof in the minutes and indicated in the decision whether and why Art. 123(3) EPC was regarded as being complied with. The board held that the omission of any reasons in respect of Art. 123(3) EPC was not only a violation of R. 111(2) EPC but also of Art. 113(1) EPC.

In T.2282/17 the board held that where a decision only refers to one or more previous communications, leaving it to the board and the appellant to speculate as to which of the reasons given by the examining division might be essential to the decision to refuse the application, it does not meet the requirements of R. 111(2) EPC. Since the examining division's decision clearly contravened R. 111(2) and Art. 113(1) EPC, and since the appellant had to appeal in order to obtain a fully reasoned decision, the board found it was equitable to reimburse the appeal fee pursuant to R. 103(1)(a) EPC.

For cases concerning the obligation under R. 111(2) EPC, R. 68(2) EPC 1973, see chapter III.K.3.4. "Reasons for the decision", and in particular chapter III.K.3.4.4.

11.6.10 Error of judgment by a department of first instance

A number of decisions have discussed whether an error of judgment by a department of first instance could be regarded as a substantial procedural violation justifying reimbursement of the appeal fee.

a) Communications

In T.19/87 (OJ 1988, 268, see also above in this chapter at V.A.11.6.7 a)) the board found the examining division had made an error of judgement and not a procedural violation when it erroneously held the appellant had made no request for oral proceedings. The board found there was no basis for ordering reimbursement of the appeal fee in accordance with R. 67 EPC 1973.

In T.621/91 the board held that misinterpretation of a letter to an EPO department constituted an error of judgment and not a substantial procedural violation.

In J.9/05 and J.18/05 the board had to decide on the examining division's decisions that R. 69(1) EPC 1973 communications were deemed to have been duly delivered to the addressees on the tenth day following its posting. The board held in each case that whilst the examining division had evaluated the evidence as to the postal delivery incorrectly, this amounted to an error of judgment and could not be characterised as a procedural non-compliance, a prerequisite for the application of R. 67 EPC 1973.